

Ex. A

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
SANDRA AMEZQUITA, RONEL LEMOS FLORIAN
MERCEDES HIDALGO and SECUNDINO
PAYAMPS PERALTA,

The Plaintiffs base venue
in the County of Kings,
which is the County of
residence of the first named
Plaintiff & the County in
which the incident
at issue occurred.

The first named Plaintiff
resides at:

471 39th Street, Apt. 3R
Brooklyn, NY 11232

Plaintiffs,

SUMMONS

-against-

THE CITY OF NEW YORK, POLICE OFFICERS
PEDRO VALLECILLO, shield no. 30714, ELVIS
MERIZALDE, shield no. 26862, JOSEPH DEGAN,
shield no. 15228, ERIC ROOME, shield no 16591,
GARY BONAVIDA, shield no. 22808, and RICHARD
RODRIGUEZ, shield no. 27733, SERGEANT
DELOSSANTOS, shield no. 2178, SERGEANT
FRANK RODRIGUEZ, shield no. 2768,
LIEUTENANT STEPHEN SPATARO, tax ID 939513,
and police officers JOHN DOE, RICHARD ROE and
other police officers presently unknown to Plaintiffs,

Index No.: 518098/2016

Index Number obtained and
paid for on October 14, 2016.

Receipt for payment of
Index Number attached.

CAF 2

Defendants.

-----X
TO: THE CITY OF NEW YORK
Law Department
100 Church Street
New York, New York 10007

INDIVIDUAL POLICE OFFICERS
72nd Precinct
830 Fourth Avenue
Brooklyn, New York 11232

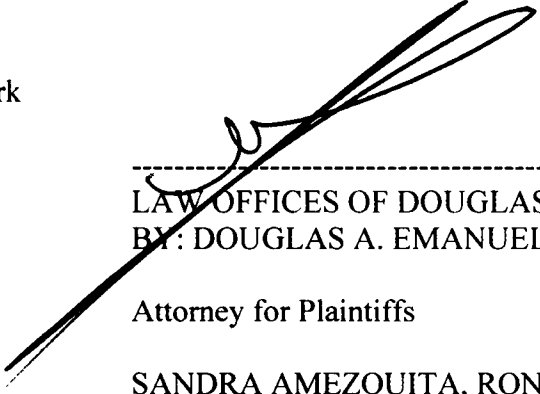
PLEASE TAKE NOTICE THAT YOU ARE HEREBY SUMMONED TO APPEAR

AND ANSWER the Complaint in this action and to serve a copy of your Answer, or if the

Complaint is not served with this Summons, to serve a Notice of Appearance, on the Plaintiffs'

attorney within TWENTY (20) days after service of this Summons, exclusive of the day of service (or within thirty [30] days after service is complete if this Summons is not personally delivered to you within the State of New York); and in case of your failure to appear and answer, Judgment will be taken against you by default for an amount in excess of the minimum monetary jurisdiction of this Court, together with legal interest, and the costs and disbursements of this action.

Dated: Brooklyn, New York
October 14, 2016



LAW OFFICES OF DOUGLAS A. EMANUEL
BY: DOUGLAS A. EMANUEL, ESQ.

Attorney for Plaintiffs

SANDRA AMEZQUITA, RONEL LEMOS FLORIAN
MERCEDES HIDALGO and SECUNDINO
PAYAMPS PERALTA

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TO: THE CITY OF NEW YORK
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INDIVIDUAL POLICE OFFICERS
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830 Fourth Avenue
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SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
SANDRA AMEZQUITA, RONEL LEMOS FLORIAN
MERCEDES HIDALGO and SECUNDINO
PAYAMPS PERALTA,

Plaintiffs,

VERIFIED
COMPLAINT

-against-

THE CITY OF NEW YORK, POLICE OFFICERS
PEDRO VALLECILLO, shield no. 30714, ELVIS
MERIZALDE, shield no. 26862, JOSEPH DEGAN,
shield no. 15228, ERIC ROOME, shield no 16591,
GARY BONAVIDA, shield no. 22808, and RICHARD
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FRANK RODRIGUEZ, shield no. 2768,
LIEUTENANT STEPHEN SPATARO, tax ID 939513,
and police officers JOHN DOE, RICHARD ROE and
other police officers presently unknown to Plaintiffs,

Index No.:

Defendants.

-----X

The Plaintiffs, SANDRA AMEZQUITA, RONEL LEMOS FLORIAN, MERCEDES
HIDALGO and SECUNDINO PAYAMPS PERALTA, by their attorney, **DOUGLAS A.
EMANUEL, ESQ.**, complaining of the Defendants, respectfully alleges as follows:

THE PARTIES TO THE ACTION

1. At all times herein mentioned, the Plaintiff, SANDRA AMEZQUITA, was and is
a resident of the County of Kings, City and State of New York, residing at 471

39th Street, Apartment 3R, Brooklyn, New York 11232.

2. The Plaintiffs, RONEL LEMOS FLORIAN, MERCEDES HIDALGO and SECUNDINO PAYAMPS PERALTO, at all times herein mentioned, are and have been residents of the State of New York.
3. At all times herein mentioned, THE CITY OF NEW YORK, was and is a municipal entity, organized and existing pursuant to the Constitution of the State of New York.
4. At all times herein mentioned, THE CITY OF NEW YORK, maintains offices by its LAW DEPARTMENT at 100 Church Street, New York, New York 10007.
5. The City of New York is authorized to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The Defendant, CITY OF NEW YORK, assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department (hereinafter "NYPD").
6. New York City Police Officer PEDRO VALLECILLO, shield number 30714, is and was at all times mentioned herein, an officer, employee and agent of the NYPD. On September 20, 2014, he was assigned to the 72nd Precinct. Police Officer Vallecillo is being sued in his individual capacity and official capacity.
7. New York City Police Officer , ELVIS MERIZALDE shield number 26862, is and was at all times mentioned herein, an officer, employee and agent of the NYPD. On September 20, 2014, he was assigned to the 72nd Precinct. Police Officer Merizalde is being sued in his individual capacity and official capacity.

8. New York City Police Officer JOSEPH DEGAN, shield number 15228, is and was at all times relevant an officer, employee, and agent of the NYPD. On September 20, 2014, he was assigned to the 72nd Precinct, though on September 29, 2015, he was reassigned to the Quartermaster. Police Officer Degan is being sued in his individual and official capacity.
9. New York City Police Officer ERIC ROOME, shield number 16591, is and was at all relevant times an officer, employee and agent of the NYPD. On September 20, 2014, he was assigned to the 72nd Precinct. Police Officer Roome is being sued in his individual and official capacity.
10. New York City Police Officer GARY BONAVIDA, shield number 22808, is and was at all times relevant, an officer, employee and agent of the NYPD. On September 20, 2014, he was assigned to the 72nd Precinct. Police Officer Bonavita is being sued in his individual and official capacity.
11. New York City Police Officer RICHARD RODRIGUEZ, shield number 27733 (“Officer Rodriguez”) is and was at all times relevant an officer, employee and agent of the NYPD. On September 20, 2014, he was assigned to the 72nd Precinct. Police Officer Rodriguez is being sued in his individual and official capacity.
12. New York Police Sergeant Delossantos, shield number 2178, is and was at all times relevant an officer, employee and agent of the NYPD. On September 20, 2014, he was assigned to the 72nd Precinct. Sergeant Delossantos is being sued in his individual and official capacity.
13. New York City Police Sergeant Frank Rodriguez (“Sergeant Rodriguez”), shield number 2768, was at all times relevant an officer, employee and agent of the

NYPD. On September 20, 2014 he was assigned to the 72nd Precinct. Sergeant Rodriguez is being sued in his individual and official capacity.

14. New York City Lieutenant Stephen Spataro, tax ID 939513, was at all relevant times an officer, employee and agent of the NYPD. On September 20, 2014, he was assigned to the 72nd Precinct. Lieutenant Spataro is being sued in his individual and official capacity.
15. Defendants, JOHN DOE and RICHARD DOE et al, whose identities and shield numbers are presently unknown to the Plaintiffs, are and were at all times relevant, officers, employees and agents of the NYPD. They are being sued in their official and individual capacities.
16. The City of New York maintains a police department at Precinct 72, 830 Fourth Avenue, Brooklyn, New York 11232.
17. At all times relevant herein, Defendants, VALLECILLO, MERIZALDE, DEGAN, ROOME, BONAVIDA, OFFICER RODRIGUEZ, DELOSSANTOS, SERGEANT RODRIGUEZ, LIEUTENANT SPATARO and JOHN DOE and RICHARD DOE (the "Individual Defendants") were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the NYPD, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the NYPD at all relevant times, with the power and authority vested in them as officers, agents and employees of the NYPD and incidental to the lawful pursuit of their duties as officers, employees and agents of the NYPD.

STATEMENT OF FACTS

18. On or about September 20, 2014, at approximately 2:15 a.m., all Plaintiffs were in the vicinity of Fifth Avenue between 40th and 41st Streets, Brooklyn, New York.
19. The Plaintiff, SANDRA AMEZQUITA, who was pregnant and late in her second trimester at the time, was assaulted and battered by a member of the NYPD, and arrested without probable cause. Specifically, while standing in the vicinity of her son, who police officers had attempted to arrest, Plaintiff Sandra Amezquita, was grabbed by an Officer Degan, who threw her to the pavement, such that she landed on her abdomen, with Officer Degan positioning himself on her back. Officer Degan also smashed a baton or nightstick on her body. Officer Roome helped pin her down on the ground.
20. Plaintiff, Amezquita, was arrested without probable cause by Officers Degan and Roome, given a summons for disorderly conduct, and was held in police custody for approximately 3.75 hours.
21. Officer Vallecillo signed the paperwork related to her arrest.
22. Prior to the incident, there were no complications with Plaintiff, Amezquita's, pregnancy. The incident resulted in complications with the pregnancy, which, upon information and belief, caused Plaintiff, Amezquita, to deliver the baby, who is named Kevin, approximately 4 weeks early.
23. There is concern that the incident has put the physical well-being and cognitive development of Kevin at risk and the potential injury to Kevin is causing Plaintiff

Amezquita and Plaintiff Florian severe mental injury, anguish, and trauma.

24. Upon information and belief, Plaintiff Amezquita was arrested and prosecuted on the basis of information provided by Officers Degan, Roome and Vallecillo that was false and fabricated.
25. The prosecution of Plaintiff Amezquita was initiated without probable cause and with malice.
26. The conduct of the Defendants, and each of them, in detaining and arresting Sandra Amezquita and using force against her was totally without probable cause, was excessive, and was done maliciously, falsely and in bad faith.
27. On December 2, 2014, the criminal prosecution was terminated favorably to Plaintiff Amezquita when the charges were dismissed.
28. Plaintiff Ronel Lemos Florian was assaulted and battered by members of the NYPD including, without limitation, upon information and belief, Officers Merizalde and / or Vallecillo, and arrested without probable cause. Specifically, Plaintiff Florian was in the vicinity of his son as police officers had attempted to arrest his son. The NYPD members then assaulted and battered Plaintiff Florian to the extent that he fell to the ground.
29. Once he was on the ground, an NYPD member further assaulted and battered Plaintiff Florian.
30. Less than a minute later, Plaintiff Florian's pregnant wife, Plaintiff Sandra Amezquita, who was standing right next to him, was thrown to the pavement by Officer Degan, as described above.
31. Plaintiff Florian was arrested by Officers Bonavita and Vallecillo, Sergeant

- Rodriguez, and John Doe and Richard Doe without probable cause, and charged with obstructing governmental administration in the second degree, harassment in the second degree, assault in the second degree, and assault in the third degree.
32. Sergeant Delossantos supervised the unlawful arrest, and Officer Rodriguez entered the paperwork related to the unlawful arrest. Lieutenant Spataro was the “signoff supervisor.”
33. Plaintiff Florian was held in police custody for approximately 22.75 hours.
34. Upon information and belief, Plaintiff Florian was arrested and prosecuted on the basis of information provided by Officer Merizalde, Officer Bonavita, Officer Rodriguez, Officer Vallecillo and John Doe and Richard Doe, that was false and fabricated.
35. The prosecution of Plaintiff Florian was initiated without probable cause and with malice.
36. The conduct of the Defendants, and each of them, in detaining and arresting Ronel Lemos Florian and using force against him was totally without probable cause, was excessive, and was done maliciously, falsely and in bad faith.
37. On March 27, 2015, the criminal prosecution was terminated favorably to Plaintiff Florian when the charges were dismissed.
38. When the NYPD were arresting Plaintiff, Amezcuita, Plaintiff Mercedes Hidalgo approached Officer Degan to tell him that Ms. Amezcuita was pregnant.
39. Plaintiff Hidalgo did not take any actions that could be considered threatening or violent.
40. Officer Degan turned from the process of arresting Ms. Amezcuita, and,

completely unprovoked, used both his hands to push Ms. Hidalgo to the ground with a force that caused her to roll approximately ten to fifteen feet into the middle of the Street.

41. Plaintiff Hidalgo was unable to stand up and remained lying in the street for a period of time.
42. An ambulance eventually took her to a hospital.
43. Plaintiff Secundino Payamps Peralta was assaulted and battered by members of the NYPD and arrested without probable cause. Specifically, Mr. Peralta went to the aid of his wife, Plaintiff, Mercedes Hidalgo, who had been thrown to the ground and injured by Officer Degan as described above. While Plaintiff Peralta was walking near his wife, Officer Vallecillo rushed at him and threw him on the hood of a car. Officer Vallecillo and several other police officers then proceeded to assault and batter him.
44. Plaintiff Peralta was arrested without probable cause by Officer Vallecillo, Officer Roome, and John Doe and Richard Doe, and he was charged with obstructing governmental administration in the second degree, harassment in the second degree, assault in the second degree, and assault in the third degree.
45. Sergeant Delossantos supervised the unlawful arrest, and Officer Rodriguez signed the paperwork related to the unlawful arrest. Lieutenant Spataro was the "signoff supervisor."
46. He was held in police custody for approximately 22.75 hours.
47. Upon information and belief, Plaintiff Peralta was arrested and prosecuted on the basis of information provided by Officer Merizalde, Officer Vallecillo, Officer

Roome, Officer Rodriguez, and John Doe and Richard Doe that was false and fabricated.

48. The prosecution of Peralta was initiated without probable cause and with malice.

49. The conduct of the Defendants, and each of them, in detaining and arresting Secundino Payamps Peralta and using force against him was totally without probable cause, was excessive, and was done maliciously, falsely and in bad faith.

50. On March 27, 2015, the criminal prosecution was terminated favorably to Plaintiff Peralta when the charges were dismissed.

51. Plaintiffs did not strike or attempt to strike any of the police officers.

52. The assault and battery by Defendant police officers on each Plaintiff was in excess of their rightful authority as NYPD officers, and was otherwise made without proper cause.

53. Defendants' conduct caused each Plaintiff to sustain physical pain and injury, suffer psychological and emotional harm, and suffer economic injuries including, but not limited to, loss of wages. Defendants' actions constitute outrageous and reckless conduct, and demonstrate a callous indifference to and willful disregard of Plaintiffs' state and other protected rights.

54. On December 15, 2014, each Plaintiff served a Notice of Claim on the New York City Comptroller's Office. On June 17, 2015, after their criminal proceedings were favorably terminated, Plaintiffs Florian and Peralta served a second Notice of Claim related to their malicious prosecution claims.

55. At least thirty (30) days have elapsed since the service of all such Notices of Claim, and adjustment and / or payment has been neglected and / or refused.

56. A 50-h hearing was held for each Plaintiff on March 18, 2015.
57. At all relevant times, Defendants were acting under color of state law.
58. An initial action was filed in the United States District Court for the Eastern District of New York within 1 year and ninety days of the incident at issue herein.
59. The United States District Court for the Eastern District of New York so-ordered a Discontinuance and dismissal of the federal claims asserted in the action under Docket number 15 CV 0303, leaving viable all non-federal claims, to be re-filed pursuant to New York Civil Practice Law and Rules Section 205(a) and / or 28 USCA Section 1367.

AS AND FOR A FIRST CAUSE OF ACTION FOR EXCESSIVE FORCE

60. The Plaintiffs repeat, reiterate and re-allege each and every allegation set forth at Paragraphs 1 through 59 as though fully set forth hereat.
61. The conduct and actions of the Defendant Police Officers, acting in concert, and under color of law, in assaulting, arresting, detaining and prosecuting the Plaintiffs, and each of them, was excessive and unreasonable, was done intentionally, willfully, maliciously, with a deliberate indifference and / or with a reckless disregard for the natural and probable consequences of their acts, was done without lawful justification or reason, and was designed to and did cause specific and serious physical and emotional pain and suffering in violation of Plaintiffs' rights.
62. As a direct and proximate result of the foregoing, Plaintiffs were subjected to

great physical and emotional pain and humiliation, and were deprived of their liberty, and were otherwise damaged.

AS AND FOR A SECOND CAUSE OF ACTION FOR ASSAULT

63. The Plaintiffs repeat, reiterate and re-allege each and every allegation set forth above at Paragraphs 1 through 62 as though fully set forth hereat.

64. Defendants, Degan, Vallecillo, Roome, Merizalde and John Doe and Richard Doe, acting within the scope of their employment, intentionally, willfully and maliciously assaulted the Plaintiffs in that they had the real or apparent ability to cause imminent harmful and / or offensive bodily contact, and intentionally engaged in violent and / or overt menacing acts, which threatened such contact to the Plaintiffs, and that such acts caused reasonable apprehension of such contact in the Plaintiffs.

65. Defendants, Degan, Roome, Vallecillo, Merizalde and John Doe and Richard Doe were at all relevant times agents, servants, and employees acting within the scope of their employment by the City of New York and the NYPD. The City of New York and NYPD are responsible for Defendant police officers' conduct.

66. Plaintiffs suffered injury as a result of Defendants, Degan, Roome, Vallecillo, Merizalde and John Doe and Richard Doe's conduct.

AS AND FOR A THIRD CAUSE OF ACTION FOR BATTERY

67. The Plaintiffs repeat, reiterate and re-allege each and every allegation set forth above at Paragraphs 1 through 66 as though fully set forth hereat.

68. Defendants Degan, Roome, Vallecillo, Merizalde, and John Doe and Richard Doe, acting within the scope of their employment, intentionally, willfully, and maliciously battered the Plaintiffs when they, in a hostile and / or offensive manner, struck each of the Plaintiffs without their consent and with the intention of causing harmful and / or offensive bodily contact to the Plaintiffs and caused such batteries.

69. Defendants Degan, Roome, Vallecillo, Merizalde, and John Doe and Richard Doe were at all times relevant agents, servants, and employees acting within the scope of their employment by the City of New York and NYPD, which are therefore responsible for their conduct.

70. Plaintiffs suffered injury as a result of Defendants Degan, Roome, Vallecillo, and John Doe and Richard Doe's conduct.

AS AND FOR A FOURTH CAUSE OF ACTION FOR FALSE ARREST AND FALSE IMPRISONMENT

71. The Plaintiffs repeat, reiterate and re-allege each and every allegation set forth above at Paragraphs 1 through 70 as though fully set forth hereat.

72. The acts and conduct of the Defendants Degan, Roome, Vallecillo, Bonavita, Officer Rodriguez, Sergeant Rodriguez, Delossantos, Spataro, and John Doe and Richard Doe constitute false arrest and false imprisonment of Plaintiffs Amezquita, Florian and Peralta under the laws of the State of New York.

Defendants Degan, Roome, Vallecillo, Bonavita, Officer Rodriguez, Sergeant Rodriguez, Delossantos, Spataro, and John Doe and Richard Doe intended to confine said Plaintiffs, and, in fact, confined said Plaintiffs, and said Plaintiffs were conscious of the confinement. Moreover, said Plaintiffs did not consent to the confinement and the confinement was not otherwise privileged.

73. Defendants, Degan, Roome, Vallecillo, Bonavita, Officer Rodriguez, Sergeant Rodriguez, Delossantos, Spataro, and John Doe and Richard Doe were at all relevant times agents, servants, and employees acting within the scope of their employment by the City of New York and the NYPD, which are therefore responsible for their conduct.

74. Plaintiffs Amezcuita, Florian and Peralta suffered injury as a result of Defendants Degan, Roome, Vallecillo, Bonavita, Officer Rodriguez, Sergeant Rodriguez, Delossantos, Spataro, and John Doe and Richard Doe's conduct.

AS AND FOR A FIFTH CAUSE OF ACTION FOR MALICIOUS PROSECUTION

75. The Plaintiffs repeat, reiterate and re-allege each and every allegation set forth above at Paragraphs 1 through 74 as though fully set forth hereat.

76. The acts and conduct of Defendants Merizalde, Degan, Roome, Vallecillo, Bonavita, Officer Rodriguez, Sergeant Rodriguez, Delossantos, Spataro, John Doe and Richard Doe constitute malicious prosecution under the laws of the State of New York. Defendants commenced and continued a criminal prosecution against the Plaintiffs Amezcuita, Florian and Peralta. Defendants Merizalde,

Degan, Roome, Vallecillo, Bonavita, Officer Rodriguez, Sergeant Rodriguez, Delossantos, Spataro, John Doe and Richard Doe acted with actual malice in commencing and continuing the proceeding and there was an absence of probable cause for the criminal proceeding. Furthermore, the criminal proceeding was terminated favorably to Plaintiffs Amezcuita, Florian and Peralta.

77. Defendants Merizalde, Degan, Roome, Vallecillo, Bonavita, Officer Rodriguez, Sergeant Rodriguez, Delossantos, Spataro, John Doe and Richard Doe were at all relevant times agents, servants and employees acting within the scope of their employment by the City of New York and NYPD, which are therefore responsible for their conduct.

78. Plaintiffs Amezcuita, Florian and Peralta suffered injury as a result of Defendants Merizalde, Degan, Roome, Vallecillo, Bonavita, Officer Rodriguez, Sergeant Rodriguez, Delossantos, Spataro, John Doe and Richard Doe's conduct.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR INTENTIONAL INFLICTION
OF EMOTIONAL DISTRESS – COMMON LAW CLAIM**

79. The Plaintiffs repeat, reiterate and re-allege each and every allegation set forth above at Paragraphs 1 through 78 as though fully set forth hereat.

80. The conduct of the Defendant police officers was done without provocation or justification, was extreme, outrageous, and utterly intolerable in a civilized community – conduct which exceeds all reasonable bounds of decency.

81. The conduct of the Defendants, as described above, was intended to and did cause severe emotional distress to the Plaintiffs, and each of them.

82. The conduct of the Defendants was the direct and proximate cause of injury and damage to the Plaintiffs and violated their statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

83. As a result of the foregoing, the Plaintiffs were deprived of their liberty, were subjected to serious physical and emotional pain and suffering, and were otherwise damaged and injured.

**AS AND FOR A SEVENTH CAUSE OF ACTION FOR NEGLIGENT
INFLICTION OF EMOTIONAL DISTRESS – COMMON LAW CLAIM**

84. The Plaintiffs repeat reiterate and re-allege each and every allegation set forth above at Paragraphs 1 through 83, as though fully set forth hereat.

85. The conduct of the Defendants, in assaulting and battering the Plaintiffs, was careless and negligent as to the emotional health and well-being of the Plaintiffs, and caused severe emotional distress to the Plaintiffs.

86. The acts and conduct of the Defendants was the direct and proximate cause of injury and damage to the Plaintiffs and violated their statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

87. As a result of the foregoing, the Plaintiffs were deprived of their liberty, were subjected to serious physical and emotional pain and suffering, and were otherwise damaged and injured.

**AS AND FOR AN EIGHTH CAUSE OF ACTION – COMMON LAW
NEGLIGENCE**

88. The Plaintiffs repeat, reiterate and re-allege each and every allegation set forth above at Paragraphs 1 through 87 as though fully set forth hereat.
89. The Defendant police officers, while acting as agents, servants and employees of the Defendant THE CITY OF NEW YORK, in their capacity as police officers of the NYPD owed a duty to perform their police duties without the use of excessive force. Defendant police officers use of force upon the Plaintiffs, when the Plaintiffs were unarmed and did not pose a threat of death or grievous bodily injury to the Defendant police officers, or to others constitutes negligence for which the Defendant police officers are individually liable.
90. The Defendant police officers use of force upon the Plaintiffs when the Defendant police officers had no lawful authority to arrest the Plaintiffs, or any of them, or to use force against the Plaintiffs, or any of them, constitutes negligence for which the Defendant police officers are individually liable.
91. As a proximate result of the Defendants' negligent use of excessive force, the Plaintiffs sustained physical and emotional pain and suffering, and were otherwise damaged and injured.

**AS AND FOR A NINTH CAUSE OF ACTION FOR RESPONDEAT SUPERIOR –
COMMON LAW VIOLATIONS**

92. The Plaintiffs repeat, reiterate and re-allege each and every allegation set forth above at Paragraphs 1 through 91 as though fully set forth above.
93. The conduct of the police officers named herein, occurred while these officers were on duty, and in uniform and in and during the course and scope of their

duties and functions as New York City police officers, and while these officers were acting as agents, officers, servants and employees of the NYPD and THE CITY OF NEW YORK. As a result, Defendant, THE CITY OF NEW YORK, is liable to the Plaintiffs, and each of them, pursuant to state common law doctrine of respondeat superior.

**AS AND FOR A TENTH CAUSE OF ACTION FOR NEGLIGENT
SUPERVISION, RETENTION, TRAINING – COMMON LAW CLAIM**

94. The Plaintiffs repeat, reiterate and re-allege each and every allegation set forth above at Paragraphs 1 through 93 as though fully set forth hereat.

95. Defendant, THE CITY OF NEW YORK, negligently trained, retained and supervised the Defendant police officers. The acts and conduct of the Defendant police officers were the direct and proximate cause of injury and damage to Plaintiffs and violated their statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

96. As a result of the foregoing, the Plaintiffs were deprived of their liberty, and were subjected to great physical and emotional pain and suffering and were otherwise damaged and injured.

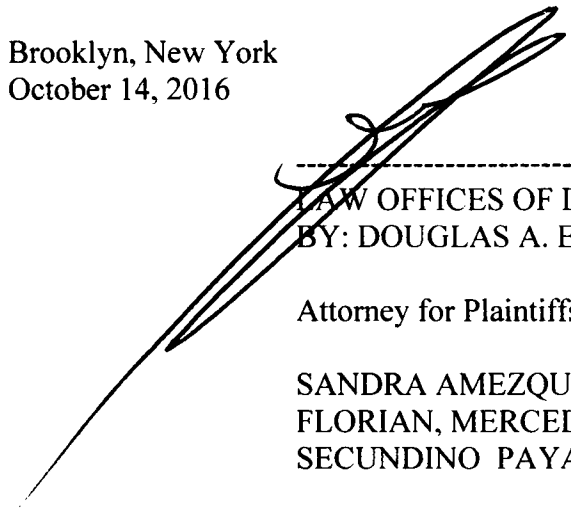
The Plaintiffs, and each of them, seek damages against the Defendants, and each of them, based upon the aforesaid damages and Causes of Action First through Tenth, which are in an amount in excess of the monetary jurisdictional limits of all Courts of inferior monetary jurisdiction.

WHEREFORE, the Plaintiffs, and each of them, demand monetary judgment in the form

of damages against the Defendants, and each of them, herein in the First through Tenth

Causes of Action, together with the costs and disbursements of this action.

Dated: Brooklyn, New York
October 14, 2016



LAW OFFICES OF DOUGLAS A. EMANUEL
BY: DOUGLAS A. EMANUEL, ESQ.

Attorney for Plaintiffs

SANDRA AMEZQUITA, RONEL LEMOS
FLORIAN, MERCEDES HIDALGO and
SECUNDINO PAYAMPS PERALTA

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New York, New York 10007

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SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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SANDRA AMEZQUITA, RONEL LEMOS FLORIAN
MERCEDES HIDALGO and SECUNDINO
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Plaintiffs,

-against-

THE CITY OF NEW YORK, POLICE OFFICERS
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LIEUTENANT STEPHEN SPATARO, tax ID 939513,
and police officers JOHN DOE, RICHARD ROE and
other police officers presently unknown to Plaintiffs,

Index No.:

Defendants.

-----X

VERIFIED COMPLAINT

Service of a copy of the within

is hereby admitted:

Dated:

Attorneys for

PLEASE TAKE NOTICE

// NOTICE OF ENTRY

that the within is a (certified) true copy of a
of the Clerk of the within named Court on

duly entered in the Office

//NOTICE OF SETTLEMENT

that an Order of which the within is a true copy will be presented for settlement to the HON.
, on of the Judges of the within named Court, at
New York, on , 2016, at .M.

Dated:

LAW OFFICES OF DOUGLAS A. EMANUEL
Attorneys for Plaintiffs

To: Attorneys for Defendants